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Hon. Thomas O. Rice

UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF WASHINGTON
AT RICHLAND

ALARIC HARTSOCK, individually,

Plaintiff,

v.

BATTELLE MEMORIAL INSTITUTE, a foreign non-profit corporation and operator of Pacific Northwest National Laboratory, CASEY PITTMAN, in her official capacity, JESSICA DELUCCHI and JOHN DOE DELUCCHI, in her official capacity and as a marital community, STEVE EKLUND, in his official capacity, and MITCHELL TUFFORD and JANE DOE TUFFORD, in his official capacity and as a marital community.

Defendants.

CASE NO. 4:26-cv-05098-TOR

DEFENDANT BATELLE MEMORIAL INSTITUTE'S MOTION TO DISMISS

Case No. 4:26-cv-05098-TOR
8/31/2026
Without Oral Argument

DEFENDANT BATTELLE MEMORIAL INSTITUTE'S MOTION TO DISMISS

Hearing date: 8/31/2026
Without Oral Argument

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I. INTRODUCTION

Plaintiff Alaric Hartsock ("Plaintiff") brings this action against his former employer, Battelle Memorial Institute ("BMI"), and four of its employees arising out of the termination of his employment in November 2024. Plaintiff asserts seven different causes of action, all but one are legally deficient on their face and cannot survive scrutiny under Federal Rule of Civil Procedure 12(b)(6).

Plaintiff's retaliation and wrongful discharge claims share a common and fatal deficiency: the Complaint pleads no facts plausibly suggesting that BMI terminated Plaintiff's employment — or took any other adverse action against him — because he complained about alleged discrimination or requested accommodation.

Plaintiff's negligent hiring, retention, and supervision claims fare no better as the Complaint fails to allege that any of the four named individual defendants acted outside the scope of their employment, or that BMI knew or should have known that they were unfit or presented a risk of harm.

Finally, Plaintiff's NIED fails because it is duplicative of his discrimination claim, and because Washington law does not impose on employers a duty of care to avoid causing emotional distress in the ordinary course of managing and terminating employment.

For these reasons, and as set forth more fully below, BMI respectfully requests that the Court dismiss each of Plaintiff's claims with the exception of Plaintiff's first cause of action for disparate treatment disability discrimination.

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II. FACTUAL BACKGROUND

II. FACTUAL BACKGROUND[1]

Plaintiff worked for BMI from around March 2021 until November 2024. Complaint, ¶¶3.1, 3.32. He was initially hired as an intern (Tech Student 4). *Id.*, ¶3.1. In early 2024, prior to applying to work as a Post-Bachelors Research Assistant ("PBRA"), Plaintiff disclosed a mental health condition to his Team Lead, Ben Laroque. *Id.*, ¶3.4. Laroque encouraged Plaintiff to apply for the position and advised that his mental health condition would not make him ineligible for security clearance. *Id.*, ¶3.5. In mid-March 2024, Plaintiff was hired as a PBRA. *Id.*, ¶3.6.

Upon taking on the new role, Plaintiff disclosed his mental health condition to his new Team Lead, Paige Maxwell. *Id.*, ¶3.7. Maxwell told him that he should still apply for a security clearance because mental health conditions are not per se disqualifying. Around this time Plaintiff disclosed to his line manager, Jeff Evans, two conditions (ulcerative colitis and ankylosing spondylitis) and requested accommodation related to bathroom access. *Id.*, ¶3.8.

On May 5, 2024, Plaintiff completed and submitted a security clearance application to BMI for review prior to submitting it to the Department of Energy ("DOE"). *Id.*, ¶3.9. In it, Plaintiff disclosed his mental health diagnosis and treatment. *Id.*, ¶3.9.

[1] For purposes of this Motion, this statement of facts is derived from Plaintiff's Complaint. BMI does not concede, and reserves the right to later challenge, Plaintiff's rendition of the facts.

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BMI's Safeguards and Security Office then reviewed the application and disclosed Plaintiff's mental health information to Evans. *Id.*, ¶3.10. Plaintiff further alleges that BMI's Safeguards and Security Office did not submit the application to the DOE, and that it withheld the application out of concerns regarding Plaintiff's mental health and allegedly "used it as a basis for termination of Plaintiff…." *Id.*, ¶3.11.

On June 12, 2024, Line Manager, Jeff Evans, informed Plaintiff that his employment would be terminated due to "unknown issues" with his security clearance application. *Id.*, ¶3.12. Evans further advised Plaintiff that he had a month to get positive letters of recommendation for future employment, and he was removed from all projects that required interim security clearance. *Id.*, ¶¶3.14-3.15. The same day, Plaintiff made a report of mental health discrimination to Human Resources via BMI's Employee Concerns phone hotline. *Id.*, ¶3.16. HR representative Casey Pittman was assigned and responded to Plaintiff's report. *Id.*, ¶3.17. On June 13, 2024, Plaintiff requested accommodation for this mental health condition with HR. *Id.*, ¶3.18.

On June 14, 2024, Plaintiff alleges BMI "shifted gears away from" terminating Plaintiff's employment as a result of his request for accommodation and report of discrimination. *Id.*, ¶3.19. Division Director Sharon Adams began looking for other positions at BMI for Plaintiff. *Id.* Allegedly, BMI initially ignored Plaintiff's report of discrimination and accommodation request and did not investigate. *Id.*

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engineer). Id., ¶¶1.6, 3.32-3.33. Tufford's feedback complained that Plaintiff did not devote all his time to a project they previously worked. Id., ¶3.34. Eklund's feedback criticized Plaintiff's "affect," taking credit for his achievements, not being committed to the work, and not being a good fit for the project. Id., ¶3.35. Plaintiff further alleged that Eklund acknowledged that Plaintiff's "affect" may have been secondary to "nerves or being new to the environment." Id., ¶3.40.

[The facts from July 2024 to November 2024 are not transcribed in this sample.]

III. PROCEDURAL BACKGROUND

On June 4, 2026, Plaintiff filed the instant Complaint in Benton County Superior Court. See Dkt. 1, pp.8-22. The Complaint alleges seven causes of action: disability discrimination, retaliation, wrongful discharge in violation of public policy, negligent hiring, negligent retention, negligent supervision, and NIED. Id. The Complaint also purports to allege a claim for "respondeat superior," but as discussed below, such is not an independent claim but a theory of liability and one which is inapplicable here.

On June 10, 2026, Plaintiff served the Complaint and Summons on Defendant BMI. Dkt. 2 (Berntsen Decl.), ¶2. Defendant BMI timely removed this matter to this Court pursuant to 28 U.S.C. § 1332(a). Dkt. 1. Upon information and belief, the individually named defendants have not been served.

III. PROCEDURAL BACKGROUND

On June 4, 2026, Plaintiff filed the instant Complaint in Benton County Superior Court. See Dkt. 1, pp.8-22. The Complaint alleges seven causes of action: disability discrimination, retaliation, wrongful discharge in violation of public policy, negligent hiring, negligent retention, negligent supervision, and NIED. Id. The Complaint also purports to allege a claim for "respondeat superior," but as discussed below, such is not an independent claim but a theory of liability and one which is inapplicable here.

On June 10, 2026, Plaintiff served the Complaint and Summons on Defendant BMI. Dkt. 2 (Berntsen Decl.), ¶2. Defendant BMI timely removed this matter to this Court pursuant to 28 U.S.C. § 1332(a). Dkt. 1. Upon information and belief, the individually named defendants have not been served.

On June 24, 2024, Plaintiff was placed into a new half-time position on the Meeting Finder Reimagined project with Program Manager Steve Eklund. *Id.*, ¶¶3.20-3.21. This position did not require a security clearance. Plaintiff worked with HR representative Pittman to find another position to fill the other half of his time. *Id.*, ¶3.21. Eventually Plaintiff landed on the same project on which he had previously worked with Glenn Fink, assisting with a multi-laboratory research initiative. *Id.*

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IV. AUTHORITY & ARGUMENT

A. Legal Standard.

To survive a motion to dismiss under Federal Rule of Civil Procedure 12(b)(6), the complaint "must contain sufficient factual matter, accepted as true, to 'state a claim to relief that is plausible on its face.'" *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009) (quoting *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 570 (2007)). "A claim has facial plausibility when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged." *Id.* The court is not required to accept as true legal conclusions, conclusory statements, unreasonable inferences, or "formulaic recitation[s] of the elements of a cause of action." *Chavez v. United States*, 683 F.3d 1102, 1108 (9th Cir. 2012).

B. Plaintiff Fails to State an Actionable Retaliation Claim.

Plaintiff's second cause of action alleges that Defendants retaliated against him for reporting discriminatory behavior and for requesting reasonable accommodations. Compl., ¶¶ 5.1-5.4. Nonetheless, Plaintiff does not identify the legal basis—statutory, common law, or otherwise—for his retaliation claim. Plaintiff asserts this claim under the employment anti-retaliation provision of the Washington Law Against Discrimination ("WLAD"), RCW 49.60.210.

A retaliation claim under this statute has three elements: (1) the employee took a statutorily protected action, (2) the employee suffered an adverse employment action, and (3) a causal link between the employee's protected activity and the adverse

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employment action. *Williams v. Recovery Innovations Inc*, No. 3:24-CV-05496-DGE, 2026 WL 1291915, at *6 (W.D. Wash. May 12, 2026), citing *Cornwell v. Microsoft Corp.*, 192 Wn.2d 403, 411, 430 P.3d 229 (2018); *see also Goodson v. Triumph Composite Sys.*, No. 13-CV-0289-TOR, 2014 WL 6908743, at *12 (E.D. Wash. Dec. 8, 2014).

Plaintiff's retaliation claim is expressly premised on his June 12, 2024 report of discrimination and June 13, 2024 request for accommodation. Compl., ¶¶3.16, 3.18, 5.3. This Motion assumes such allegations satisfy the protected activity element. And the Complaint further alleges Plaintiff suffered an adverse action when he was terminated on November 21, 2024. *Id.*, ¶3.32.

But fatally, the Complaint fails to allege any facts plausibly suggesting that BMI terminated Plaintiff's employment or took any other adverse action against him because he reported discrimination or because he requested accommodation. Instead Plaintiff alleges that BMI failed to investigate his June 12, 2024 discrimination report, initially "ignored" his accommodation request, required him to "follow up," and later "approved" his request. *Id.*, ¶¶3.19, 3.20, 3.22, 3.23, 3.25, 3.26.

Nowhere in the Complaint are facts alleged suggesting BMI terminated Plaintiff's employment or took any other adverse action against him for requesting accommodation or reporting discrimination. Nor does it allege that anyone at BMI harbored or expressed animosity towards Plaintiff for requesting accommodation or reporting discrimination. In fact, to the contrary, the Complaint alleges that BMI

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alleges that BMI "shifted gears *away from termination*" due to Plaintiff's discrimination report and accommodation request. Compl. ¶3.19 (emphasis added).

Plaintiff repeatedly alleges that BMI terminated his employment *not* due to any opposition activity but due to his disclosed mental health condition and associated concerns about his security application. *See, id.*, ¶¶3.11-3.13, 3.40. If, as Plaintiff alleges, BMI terminated his employment due to a disability, such allegations would support a disparate treatment disability discrimination claim—Plaintiff's first cause of action—not a retaliation claim, which must be premised upon opposition activity.

Moreover, causation cannot be inferred from the timing of events. BMI terminated Plaintiff's employment roughly eight months after he first requested accommodation, and more than five months after he reported discrimination. *See id.*, ¶¶3.6-3.8 (Plaintiff first requested accommodation around the time he took new PBRA role in mid-March 2024), ¶3.16 (Plaintiff reported discrimination on June 12, 2024); ¶3.32 (employment terminated November 21, 2024); *see also Kahn v. TransForce, Inc.*, 2023 WL 346627, at *3 (W.D. Wash. Jan. 20, 2023) (citations omitted) (court "may not infer causation from temporal proximity unless the time between the employer's knowledge of the protected activity and the adverse employment action is very close."); *Woods v. Washington*, 475 Fed. Appx. 111, 113 (9th Cir. 2012) ("eight-month interval does not permit an inference of causation").

[Sections IV.C to IV.E (the wrongful discharge, negligent hiring, supervision and retention, and NLRB arguments) are not transcribed in this sample.]

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V. CONCLUSION

For the reasons set forth herein, BMI respectfully requests that the Court grant BMI's Motion to Dismiss.

DATED this 6th day of July, 2026

Respectfully submitted,

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DATED this 6th day of July, 2026.

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CERTIFICATE OF SERVICE

CERTIFICATE OF SERVICE

I hereby certify that on this day I caused a true and correct copy of the foregoing to be served, as indicated, upon the following participants: Carrie M. Coppinger, Coppinger Law PS, 103 W. Main Street, Suite 202, Everson, WA 98247 (cc@coppingerlawps.com; service@coppingerlawps.com), attorney for Plaintiff, via CM/ECF, email and U.S. Mail.

I hereby certify that on this day I caused a true and correct copy of the foregoing to be served, as indicated, upon the following participants:

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DATED this 6th day of July, 2026.

s/Dominique Barrientes, Legal Assistant, dominiqueb@summitlaw.com

DATED this 6th day of July, 2026.

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